

only, Barnardiston, the other reporter, applies his Lordship's observation to a *conveyance* (b). It would thus appear that Lord Hardwicke in fact extended his remark to a will and a conveyance indifferently.

Both Lord Hardwicke and Mr. Fonblanque assume that the *seventh* or enacting clause embraces all trusts indiscriminately, and that such as arise by operation of law are only saved from the act by virtue of the subsequent exception contained in the eighth section; but the language of the latter clause, that "where any *conveyance* shall be made of any lands or tenements by which a trust or confidence shall or may arise or result," &c., seems to have escaped observation; for, unless *conveyance* be taken with great violence to the meaning of the words to include a *devise*, it is clear that trusts resulting under a will are not reached by the terms of saving. Nor is it easy to suppose that the legislature could mean to include a devise; for the fifth and sixth sections relate exclusively to devices, and, had it fallen within the scope of the Act to extend the eighth section to wills, it can scarcely be conceived that the proper and technical word should not necessarily have suggested itself. The question then arises, If resulting trusts upon a *will* are not saved by the exception, how are they not affected by force of the previous enactment? As the statute was directed against frauds and perjuries, it is obvious that resulting trusts were not within the mischief intended to be remedied. The aim of the legislature was, not to disturb such trusts as were raised by maxims of equity, and so could not open a door to fraud or perjury, but, by requiring the *creation of trusts by parties* to be manifested in writing, to prevent that fraud and perjury to which the admission of parol testimony had hitherto given occasion. And the enactment itself is applicable only to this view of the subject; for the legislature could scarcely direct that "all declarations or creations of trusts should be manifested and proved," &c., unless the trusts were in their nature capable of manifestation and proof; but, as resulting trusts are the effect of a rule of law,

(b) See *Lloyd v. Spillet*, Barn. 388.